

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before The Honorable Doris Johnson Hines
Administrative Law Judge**

In The Matter Of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**RESPONDENTS' MOTION *IN LIMINE* NO. 4: TO PRECLUDE SAMSUNG
FROM PRESENTING AN UNTIMELY SIGNIFICANCE THEORY TO PROVE
DOMESTIC INDUSTRY INVESTMENTS**

GROUND RULE 5.1 CERTIFICATION

Pursuant to Ground Rule 5.1, Oura states that it made reasonable, good-faith efforts to resolve the matter with Samsung prior to filing the Motion. Samsung has indicated that it opposes this motion and agrees that the parties are at an impasse.

I. INTRODUCTION

Respondents Ouraring Inc. and Oura Health Oy (“Oura” or “Respondents”) respectfully move to preclude Complainants Samsung Electronics Co., Ltd. (“SEC”) and Samsung Electronics America, Inc. (“SEA”) (together, “Samsung” or “Complainants”) from presenting any evidence, argument, or testimony relating to economic domestic industry significance relative to SEA’s U.S. operating expenses (“OPEX”) because Samsung never presented such a theory in its contentions. Samsung’s contentions only alleged significance based on worldwide operating expenses—not U.S.-specific OPEX. As the Commission has recognized, these two are distinct theories and result in distinct conclusions. *See Certain Human Milk Oligosaccharides & Methods of Producing the Same*, Inv. No. 337-TA-1120, ID at 113 (Sept. 9, 2019) (EDIS ID 690229). Samsung’s disclosure of significance based on U.S.-only OPEX was untimely, precluding Oura from probing the basis of this theory during fact discovery. It should be struck.

II. BACKGROUND

Samsung contends that “SEC is one of the largest providers by volume of wearables and smartphones in the world” and “is involved in the development and manufacture of the DI Products.” CPreHB at 328. But Samsung’s economic domestic industry (“EDI”) contentions are based entirely on investments by subsidiary SEA, which is “the Samsung entity that sells Samsung products in the United States.” CPreHB at 289 (EDIS ID 891086). Samsung alleges that SEA is an entirely U.S. business with no non-U.S. expenses. CPreHB at 289-90; Ex. A ¶ 225.

Samsung’s final EDI contentions identified several theories (albeit often in a conclusory manner) to show that its domestic investments are significant. *See* Ex. B at 48-52. One is relevant here for this motion. In its contentions, Samsung disclosed significance based on worldwide OPEX: “SEA’s U.S. expenses and investments relating to the Galaxy DI Products are also significant in comparison to Samsung’s *worldwide operating expenses* and development costs

relating to the DI Products.” Ex. B at 52 (emphasis added). As support, Samsung cited CX-1708C (Ex. C, SAMS382-0035202) and CX-1709C (Ex. D, SAMS382-0043997), both of which contain SEC’s reported data on worldwide expenses.

On June 10, 2026—after Samsung served its final contentions and fact discovery closed (*see* Order No. 8)—Samsung served an expert report by Julia Rowe on EDI, including theories for why Samsung’s claimed investments are significant. *See* Ex. A, § 5 (“Evaluation of Significance and Substantiality”). Among her several significance theories was an Investment-to-U.S. OPEX theory of significance, which compared the claimed EDI investments to SEA’s U.S. OPEX for the DI Products. She opined that “Samsung investments in plant and equipment for the domestic industry products also comprise a significant portion of Samsung’s operating expenses associated with the domestic industry products sold in the United States.” *Id.* ¶ 212; *see also id.* ¶ 215 (similar for “labor and capital” investments).¹ This was a U.S.-only analysis, placed in § 5.1 of her report on domestic indicators of significance rather than § 5.2, “Samsung’s Foreign Expenditures.”

Samsung’s prehearing brief presented this significance theory (among others), relying primarily on Ms. Rowe’s report (JDX-0002C). *See* CPreHB § IX.E at 325-27, 329.

III. LEGAL STANDARDS

If a theory was not disclosed in a party’s contentions, it cannot be raised through an expert opinion or prehearing argument. *See Certain Compact Wallets and Components Thereof*, Inv. No. 337-TA-1355, Order No. 20 at 2 (Sept. 15, 2023) (EDIS ID 808922) (“Contentions raised for the first time in an expert report are routinely stricken unless good cause exists based on information thereafter acquired.”); *Certain Audio Processing Hardware, Software, and Prods. Containing the*

¹ Although she said “Samsung’s operating expenses,” she assessed only SEA’s (and not SEC’s) OPEX. *Id.* ¶¶ 212-13, 216, Exs. 7.2-7.3, 9.0-9.2, 10.0-10.1

Same, Inv. No. 337-TA-1026, Order No. 58 at 6 (Aug. 15, 2017) (EDIS ID 622876) (“A party cannot rely on contentions in its prehearing brief that have not been timely disclosed during discovery.”); *Certain Smart Wearable Devices, Systems, and Components Thereof*, Inv. No. 337-TA-1468, Order No. 23 (July 6, 2026) (EDIS ID 887826) (striking complainant’s expert testimony on bond where his report “introduced them for the first time”); *Certain Audio Processing Hardware, Software, and Products Containing the Same*, Inv. No. 337-TA-1026, Order No. 41 at 5-7 (July 14, 2017) (EDIS ID 618281) (“[W]hile expert reports certainly play a role in fleshing out ... arguments, expert reports have never been the first instance in which ... arguments are set forth especially in circumstances such as these when contention interrogatories are propounded and all of the parties have agreed to a cut-off date for responses to said contention interrogatories.”)

IV. ARGUMENT

A. Samsung’s “Investment-to-U.S. OPEX” Theory Should Be Struck

Samsung’s theory that its claimed investments are significant relative to SEA’s U.S. OPEX was not disclosed in its contentions, and so it cannot be raised through Ms. Rowe’s report or Samsung’s prehearing brief. Samsung’s contentions identified a theory involving SEC’s *worldwide* OPEX, not Ms. Rowe’s theory on SEA’s U.S.-specific OPEX.

1. Samsung’s Contentions Disclosed a Worldwide OPEX Theory

The only OPEX theory of significance that Samsung disclosed in its EDI contentions was one based on “Samsung’s *worldwide* operating expenses and development costs relating to the DI Products,” citing documents containing worldwide data for the DI Products. Ex. B at 52 (emphasis added). This theory compared SEA’s claimed EDI investments to Samsung’s worldwide OPEX, which [REDACTED]. See Ex.

B at 19. There is no ambiguity here. Samsung explicitly distinguished “*SEA’s U.S.* expenses and investments” from “*Samsung’s worldwide* operating expenses.” *Id.* at 52 (emphasis added).

This reading is confirmed by looking to how Samsung’s contentions discussed comparisons to U.S., not worldwide, measures. For example, when Samsung’s contentions disclosed a “cost of goods” significance theory based on SEA’s U.S. cost of goods (rather than Samsung’s worldwide cost of goods), they stated “SEA’s U.S. expenses and investments relating to the Galaxy DI Products are significant in comparison to *SEA’s* costs of goods sold.” *Id.* at 52 (emphasis added). In light of the language and structure of Samsung’s contentions pointing to a worldwide OPEX measure, Oura could not have reasonably expected that Samsung would introduce a theory comparing EDI investments to U.S.-specific OPEX. *Cf. Certain Human Milk Oligosaccharides & Methods of Producing the Same*, Inv. No. 337-TA-1120, ID at 113 (Sept. 9, 2019) (EDIS ID 690229) (identifying a “comparison to [] company-wide operating expenses” and “comparison to foreign expenditures” as distinct theories).

Samsung’s contentions also did not identify the record evidence providing SEA’s U.S. OPEX. They cite SEC’s worldwide records, different from what SEA reports. Exs. C, D. Samsung’s corporate witness for worldwide expenses admitted [REDACTED]. Ex. E (D. Kim) 90:4-95:2. He also stated that CX-1709C (SAMS382-0043997, Exhibit 4 to his deposition) attributes [REDACTED]. *Id.* 91:9-92:4; Ex. F. Samsung’s corporate witness for SEA’s (not SEC’s) expenses explained that [REDACTED] as reflected in Exhibit 5 to his deposition (Ex. G (SAMS382-0027559, CX-1706C)). Ex. H (Martinez) 65:19-66:2, 81:22-24, 83:7-11. The table below provides an exemplary comparison of the distinct OPEX [REDACTED] [REDACTED] as reported by (1) SEC for total worldwide OPEX, (2) SEC for SEA’s

OPEX, and (3) SEA for SEA’s U.S. OPEX, based on a document that was not cited in Samsung’s contentions.

[REDACTED] (Col:Row)	Ex. D, CX-1709C, [REDACTED]	Ex. D, CX-1709C, [REDACTED]	Ex. G, CX-1706C [REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]

2. *Samsung’s Expert Report and Pre-Hearing Brief Advance a New “U.S.” OPEX Theory*

Ms. Rowe’s OPEX significance opinion compares the claimed EDI investments to SEA’s U.S. OPEX for the DI Products to (allegedly) show that SEA has an outsized commitment to commercializing the DI Products in the U.S. as compared to other mobile products. *See* Ex. A ¶¶ 209 (“[T]he operating expenses demonstrates SEA’s commitments to commercializing the domestic industry products.”), 212-16, Ex. 9.1. To determine SEA’s OPEX, she relies on the data reported by CX-1706C (as discussed above) and similar SEA records—none of which were cited in Samsung’s contentions to show OPEX. *See* Ex. A, Ex. 9.1 (“Operating Expenses for Domestic Industry products Sold in the U.S.,” citing Ex. 7.3); Ex. 7.3 n. 1 (listing SAMS382-0011282, SAMS283-0011293, SAMS382-0027559 (Ex. G, CX-1706C)). Although Ms. Rowe broadly refers to “Samsung’s” OPEX, she must mean specifically SEA’s OPEX: she does not cite SEC or worldwide data, and she limits her analysis to “operating expenses for U.S. sales.” *See, e.g.*, Ex. A ¶ 215, ¶ 216 n. 576 (explaining the [REDACTED] [REDACTED]).

Samsung’s pre-hearing brief adopts Ms. Rowe’s opinions on operating expenses. CPreHB at 325-26 (further citing JDX-0002C (Rowe Report)). Samsung even clarifies that “[t]hese [REDACTED] are specific to SEA....” CPreHB at 325-26. Other than citing Ms. Rowe’s report, Samsung cites the testimony of its SEA corporate witness Mr. Martinez and an

[REDACTED]

SEA financial document. Ex. A ¶ 216 n. 576 (describing RX-0409C, SAMS382-0026452, as a document providing SEA data); Ex. H (Martinez) 7:17-21, 81:22-24. Samsung does not allude to worldwide OPEX at all.

B. Samsung's Untimely Contentions Prejudice Oura

Samsung disclosed a significance theory based on worldwide OPEX, but changed course during expert discovery to a theory based on SEA's U.S. OPEX. These are different theories, made for different purposes, relying on different data that is known to different corporate witnesses. Oura should have been made aware of this change before the close of fact discovery, but Samsung made no such effort and should not be allowed to pursue either theory now. *See* G.R. 11.2.

The reason for Samsung's abrupt change in theory is transparent. As Oura's economic expert John Jarosz explained, a comparison of Samsung's claimed investments to worldwide OPEX shows that they lack significance. Ex. I ¶ 136(c) ([REDACTED]). This insignificance is consistent with SEA's [REDACTED]. *See* Ex. I ¶ 151; Ex. A ¶¶ 205, 225. Thus, to prop up significance, Samsung pursued a new theory in its expert report and now in its pre-hearing brief that compares SEA's (allegedly) qualifying investments in the DI Products to SEA's operating expenses to commercialize those products.

Oura is prejudiced by Samsung's disclosures of this significance theory after final contentions and after the close of fact discovery. Oura was not on notice that Samsung intended to present them and consequently was not on notice to investigate the matters during discovery. For example, a worldwide OPEX metric implicates expenses such as foreign product development and

manufacture, which is a distinct analysis from one that compares SEA's relative U.S. commercialization efforts.

Samsung has no excuse for not fully presenting this theory in its contentions. This theory was intended to satisfy Samsung's burden to prove a significant domestic industry, and Samsung has always been in possession and control of its own investment data, which Ms. Rowe belatedly relied on to generate new (purported) significance indicators. Oura has been prejudiced without good cause.

V. CONCLUSION

For the foregoing reasons, Oura respectfully requests that Samsung be precluded from presenting arguments, submitting evidence, or eliciting any testimony concerning the comparison of Samsung's claimed EDI investments to SEA's U.S. OPEX.

Dated: August 24, 2026

Respectfully submitted,

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

James A. Fussell, III

Saqib J. Siddiqui

Bryan C. Nese

Michael L. Lindinger

Tiffany A. Miller

Clark S. Bakewell

Julia L. Haines

Amanda E. Stephenson

Seth W. Bruneel

Courtney Krawice

Angeline Premraj

Paul Choi

So Ra Ko

Jaspreet Momi

MAYER BROWN LLP
1999 K Street, NW
Washington, DC 20006-1101
Tel.: +1 202.263.3000

Robert G. Pluta
Nicholas H. Ciulla
MAYER BROWN LLP
71 S. Wacker Drive
Chicago, IL 60606
Tel.: +1 312.782.0600

*Counsel for Respondents Ouraring Inc. and
Oura Health Oy*

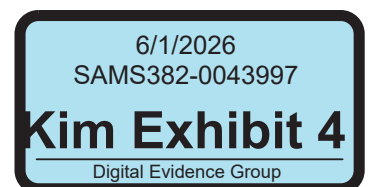
Oura-ITC@mayerbrown.com

Exhibits A-E

Redacted in Entirety

Exhibit F

File Provided in
Native Format



Exhibits G-I

Redacted in Entirety

Certain Wearable Devices

Inv. No.: 337-TA-1478

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **RESPONDENTS' MOTION IN LIMINE NO. 4: TO PRECLUDE SAMSUNG FROM PRESENTING AN UNTIMELY SIGNIFICANCE THEORY TO PROVE DOMESTIC INDUSTRY INVESTMENTS** was served upon the following as indicated below on August 24, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: OMM-SamsungOura@OMM.com

/s/ Jasjit S. Vidwan
Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*

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I hereby certify that a copy of the foregoing **PUBLIC VERSION OF RESPONDENTS' MOTION *IN LIMINE* NO. 4: TO PRECLUDE SAMSUNG FROM PRESENTING AN UNTIMELY SIGNIFICANCE THEORY TO PROVE DOMESTIC INDUSTRY INVESTMENTS** was served upon the following as indicated below on August 31, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: OMM-SamsungOura@OMM.com

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*